IN THE COURT OF METROPOLITAN MAGISTRATE COURT, EGMORE

AT CHENNAI, TAMIL NADU

CRIMINAL MISCELLANEOUS PETITION NO. _____ OF 2026

(In Crime No. 182/2026 of B-2 Esplanade Police Station, Chennai Police Station)

IN THE MATTER OF:

Murugan Selvam, Age 29 years, Male, residing at No. 14, Rajaji Salai, George Town, Chennai

... PETITIONER / ACCUSED

VERSUS

STATE REPRESENTED BY THE INSPECTOR OF POLICE,
B-2 Esplanade Police Station, Chennai Police Station, Chennai District.

... RESPONDENT / PROSECUTION

PETITION FOR STATUTORY DEFAULT BAIL UNDER SECTION 187(3) OF BHARTIYA NAGARIK SURAKSHA SANHITA, 2023

MOST RESPECTFULLY SHEWETH:

1. That the Petitioner has been falsely implicated in Crime No. 182/2026 registered at B-2 Esplanade Police Station, Chennai Police Station for alleged offences under Section 303(2) BNS (Bharatiya Nyaya Sanhita, 2023) - Theft.

2. That the Petitioner was arrested on 1/8/2026 and was produced before this Hon'ble Court and remanded to judicial custody on 2/8/2026. The Petitioner has been in continuous incarceration since then.

3. GROUNDS FOR BAIL:

A. INDEFEASIBLE DEFAULT BAIL RIGHT: The statutory investigation period of 60 days expired on 1/10/2026. No police report/chargesheet was filed within the statutory period, entitling the Petitioner to mandatory bail under Section 187(3) BNSS, 2023.

D. The Petitioner is an innocent citizen with roots in society, has permanent residence, and there is no risk of absconding or tampering with evidence.

E. The Petitioner is ready and willing to furnish solvent sureties and comply with any reasonable conditions imposed by this Hon'ble Court.

F. Continued incarceration without trial violates the fundamental guarantee of personal liberty under Article 21 of the Constitution of India.

4. PRAYER:

Wherefore, in the light of the facts and statutory grounds stated above, it is most respectfully prayed that this Hon'ble Court may be pleased to enlarge the Petitioner on bail in Crime No. 182/2026 on the file of the Respondent Police Station, and pass such other or further orders as this Hon'ble Court may deem fit and proper in the interest of justice.

ADVOCATE FOR PETITIONER **PETITIONER / AUTHORISED AGENT**

VERIFICATION

I, Murugan Selvam, the Petitioner / relative of the accused above-named, do hereby verify that the contents of paragraphs 1 to 4 are true and correct to the best of my knowledge and legal advice received. Verified at Chennai on this 26/10/2026.

DEPONENT

DRAFT — For review by a licensed advocate